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|    | <b>2025-01510901</b>                                                                                      | <b>Motion to Strike Complaint</b><br><br>All matters off calendar. Case dismissed on 6/11/26.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 8  | <b>Nationwide Insurance Company vs. Cal-Coast Packing &amp; Crating, Inc.</b><br><br><b>2025-01501912</b> | <b>CMC Demurrer to Complaint</b><br><br>CMC continued. See minute order dated 6/4/26 (ROA 61). Demurrer is off calendar. See notice filed 5/26/26 (ROA 56).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 9  | <b>Rume Medical Group, Inc vs. Lee M.D</b><br><br><b>2025-01481522</b>                                    | <b>Motion to Appear Pro Hac Vice</b><br><br>Off calendar. See minute order dated 6/23/26 (ROA 117).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 10 | <b>Zacharda vs. Orange County Youth Sports Association</b><br><br><b>2020-01149973</b>                    | <b>Motion for Leave to Amend</b><br><br>Plaintiff and Cross-Defendant Kirk Zacharda's motion for leave to file an amended answer is denied. Given the proximity of the Motion for Summary Judgment (MSJ) and trial date, there is prejudice to OCYSA in permitting the amendment that cannot be cured by continuing the current trial date of October 5, 2026.<br><br>Further, there hasn't been a sufficient showing of diligence or reasonable explanation for the delay in seeking the relief. The court acknowledges that new counsel substituted into this case late last year. Although new counsel does have a duty to investigate the legal and factual sufficiency of claims upon substitution, this duty does not automatically translate into good cause for late amendments. ( <i>Primo Hospitality Group, Inc. v. Haney</i> (2019) 37 Cal.App.5 <sup>th</sup> 165 [Holding the mere act of substituting in as counsel carries no automatic legal consequences with respect to the existing pleadings.]) There is no reasonable explanation as to why the amendment could not have been made sooner.<br><br>The court may consider permitting the amendment and continuing the current MSJ and trial date if the parties enter into a stipulation to waive the five-year dismissal requirement of California Code of Civil Procedure § 583.310. That section provides that an action shall be brought to trial within five years after the action is commenced against the defendant. The court notes that the parties previously stipulated to waive the section 583.310 requirement for the January 2026 trial date, but the stipulation was specific to the January date. Defendant then requested a continuance of trial on |

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|    |                                                                 | <p>two subsequent occasions (ROAs 399, 404 and 430). If the court were to continue the trial date again, another stipulation would need to be executed.</p> <p>OCYSA's objections to the Declaration of Jason D. Goldwater are overruled.</p> <p>The court will inquire as to whether counsel stipulate to extend the 5-year dismissal rule to the trial date of 10/5/26. If the parties do not stipulate, the court will set an OSC re: dismissal of the action under Ca. Civ. Pro. Section 583.310 for 7/2/26 at 1:30 p.m. in this department.</p> <p>Clerk to give notice.</p> |
| 11 | <b>Kiani vs. Masimo Corporation</b><br><br><b>2024-01426785</b> | <b>Status Conference</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |